

Triveni Prasad v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 2 March 2017 · Writ - C No. 9367 of 2017 · **Writ dismissed; petitioner relegated to clause 6.5.**

HEADNOTE

A writ disputing an electricity bill is not entertained where clause 6.5 of the Electricity Supply Code, 2005 supplies a statutory alternative remedy.

FACTUAL SUMMARY

Triveni Prasad filed a writ petition in the Allahabad High Court disputing an electricity bill raised by the respondent power corporation. The State of Uttar Pradesh and three others were respondents. Counsel for the corporation submitted that the petitioner had a statutory alternative remedy under clause 6.5 of the Electricity Supply Code, 2005. The Division Bench recorded that such a remedy existed and, on that footing, declined to examine the bill on merits.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing dispute alternative remedy

HOLDING

Where the consumer disputes an electricity bill raised by the power corporation, clause 6.5 of the Electricity Supply Code, 2005 is a statutory alternative remedy, and the High Court will decline to entertain a writ petition on that dispute.

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NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DISPUTED ELECTRICITY BILL

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